

Central Valley Regional Water Quality Control Board

28 March 2019

Shari Bender Ehlert, District Director
California Department of Transportation
1352 West Olive Avenue
Fresno, California 93778

CERTIFIED MAIL
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**NOTICE OF APPLICABILITY (NOA), STATE WATER RESOURCES CONTROL BOARD
ORDER WQ 2014-0153-DWQ-R5296, GENERAL WASTE DISCHARGE REQUIREMENTS
FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, CALIFORNIA
DEPARTMENT OF TRANSPORTATION, C. H. WARLOW SAFETY ROADSIDE REST AREA,
ONSITE WASTEWATER TREATMENT SYSTEM, TULARE COUNTY**

On 1 February 2018 the California Department of Transportation (Discharger) submitted a Report of Waste Discharge (RWD) for the C. H. Warlow Safety Roadside Rest Area (Warlow Rest Area) onsite wastewater treatment system (OWTS or Facility) requesting coverage under the State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). On 25 February 2019, the Discharger submitted a completed and signed Form 200 for the Warlow Rest Area. Based on the information provided and a review of the available information, the Facility treats and disposes of less than 100,000 gallons of domestic wastewater per day and is therefore eligible for coverage under the General Order. This letter serves as formal notice that the General Order is applicable to your system and the wastewater discharge described. You are hereby assigned General Order **2014-0153-DWQ-R5296** for your system.

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which describe mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached *Monitoring and Reporting Program* (MRP) No. 2014-0153-DWQ-R5296. This MRP was developed after consideration of your waste characterization and site conditions described in the attached memorandum.

DISCHARGE DESCRIPTION

The Discharger owns and operates the Warlow Rest Area and the associated OWTS. The Warlow Rest Area is on the east side of Highway 99 (Post Mile Marker 52) about 2.5 miles south of Kingsburg in Tulare County. The Warlow Rest Area is in Section 31, Township 16 South, Range 32 East, Mount Diablo Base and Meridian. The Warlow Rest Area was constructed in 1967, updated in 1985, and provides a comfort station to the traveling public.

Domestic wastewater from toilets and urinals is discharged into two 4,500-gallon capacity (total capacity of 9,000 gallons) septic tanks, from which wastewater is discharged into a leach field with 750 linear feet of leach field trench. Each leach field lateral has an inspection port for monitoring wastewater depth in the leach field trenches. The February 2018 RWD indicates the rate of wastewater flow was determined by estimating traffic volumes and expected usage. The average design flow rates are reported to be 6,000 gallons per day. The February 2018 RWD estimates the wastewater quality at the Warlow Rest Area is similar to the septic tank influent quality listed in Table 1 of the General Order

FACILITY SPECIFIC REQUIREMENTS AND EFFLUENT LIMITATIONS

The Discharger will maintain exclusive control over the discharge and shall comply with the terms and conditions of this NOA, General Order 2014-0153-DWQ-R5296, with all attachments, and MRP No. 2014-0153-DWQ-R5296.

In accordance with Section B.1 of the General Order, treated wastewater discharged to the leach field system shall not exceed a **monthly average daily discharge of 6,000 gpd**. In accordance with the requirements of the General Order this NOA does not specify a nitrogen effluent limitation since the Facility flow rate is less than 20,000 gpd.

The General Order states in Section B.1 that the Discharger shall comply with the setbacks as described in Table 3 of the General Order. This table summarizes different setback requirements for wastewater treatment system equipment, activities, land application areas, and storage and/or treatment ponds from sensitive receptors and property lines where applicable. The Discharger shall comply with the applicable setback requirements, as summarized in the following table:

Site-Specific Applicable Setback Requirements				
Equipment or Activity	Domestic Well	Flowing Stream ¹	Ephemeral Stream Drainage ²	Property Line
Septic Tank, Treatment System, or Collection System ³	150 ft. ⁴	50 ft. ⁵	50 ft.	5 ft. ⁵
Leach Field	100 ft. ^{5,6}	100 ft. ⁵	50 ft.	5 ft. ⁵

1. A flowing stream shall be measured from the ordinary high-water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation type, presence of litter or debris, or other appropriate means.
2. Ephemeral Stream Drainage denotes a surface water drainage feature that flows only after rain or snow-melt and does not have sufficient groundwater seepage (baseflow) to maintain a condition of flowing surface water. The drainage shall be measured from a line that defines the limit of the ordinary high-water mark (described in "a" above). Irrigation canals are not considered ephemeral streams drainage
3. Septic Tank, Treatment System, or Collection System addresses equipment located below ground or that impedes leak detection by routine visual inspection
4. Setback established by Onsite Wastewater Treatment System Policy, section 7.5.6.
5. Setback established by California Plumbing Code, Table K-1.
6. California Well Standards, part II, section 8.

The Discharger shall comply with the septic system requirements in Section B.2 of the General Order. The General Order states in Section B.2.d that septic tanks shall be pumped when any of the following conditions exist:

- i. The combined thickness of sludge and scum exceeds one-third of the tank depth of the first compartment.
- ii. The scum layer is within 3 inches of the outlet device.
- iii. The sludge layer is within 8 inches of the outlet device.

The Discharger shall comply with the subsurface disposal system requirements in Section B.6 of the General Order. Section B.6.g requires the following with regards to Underground Injection Control requirements:

- g. Subsurface disposal systems including leach fields and seepage pits, must comply with USEPA Underground Injection Control requirements when classified as a Class V well. Subsurface disposal systems with at least one of the following characteristics are classified as Class V wells:
 - i. The system has the capacity to serve 20 or more persons per day.
 - ii. The system receives wastewater other than domestic wastewater such as that generated by manufacturing, chemical processing, industrial fluid disposal, automotive repair, or recycling.
 - iii. The system receives sewage containing biological agents (such as wastewater from recreational vehicles or portable toilets).

Disposal systems that are classified as Class V wells must be registered with USEPA either by completing the online form at: <http://www.epa.gov/region09/water/groundwater/injection-wells-register.html> or by completing and submitting Form 7520-16: Inventory of Injection Wells. Form 7520-16 is available at: <http://epa.gov/region09/water/groundwater/uic-pdfs/7520-16.pdf>.

Provision E.1 of the General Order requires dischargers enrolled under the General Order to prepare and implement the following reports within **90 days** of the issuance of the NOA **(26 June 2019)**:

- Spill Prevention and Emergency Response Plan (Provision E.1.a.).
- Sampling and Analysis Plan (Provision E.1.b.).

A copy of the Spill Prevention and Emergency Response Plan and the Sampling and Analysis Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request.

Failure to comply with the requirements in this NOA, General Order 2014-0153-DWQ-R5296, with all attachments, and MRP No. 2014-0153-DWQ-R5296 could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board) adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting. These programs,

once effective, could change how the Central Valley Water Board permits discharges of salt and nitrate.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

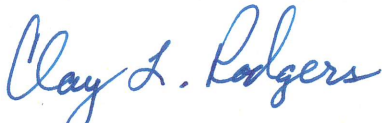
The Central Valley Water Board has gone to a Paperless Office System. All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the Central Valley Water Board office at 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15, WDID: 5C54NC00296,
Facility Name: C. H. Warlow Safety Roadside Rest Area OWTS,
Order-2014-0153-DWQ-R5296.

In order to conserve paper and reduce mailing costs, a paper copy of the General Order has been sent only to the Discharger. Others are advised that the General Order is available on the State Water Board's web site at:

http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

If you have any questions regarding this matter, please contact Jeff Pyle by phone at (559) 445-5145, by email at jpyle@waterboards.ca.gov.



for Patrick Pulupa
Executive Officer

Attachments: Attachment A – Site Location Map
Monitoring and Reporting Program No. 2014-0153-DWQ-R5296
Technical Memorandum for California department of Transportation, C. H.
Warlow Roadside Safety Rest Area
State Water Resources Control Board Order WQ 2014-0153-DWQ
(Discharger Only)

cc: Tulare County Environmental Health Division, 5957 S. Mooney Boulevard, Visalia,
California